

**POKER FLAT PROPERTY OWNERS ASSOCIATION, INC.
v. ESTRADA et al**

22CV45807

**PLAINTIFF'S MOTION TO ENFORCE
SETTLEMENT AGREEMENT**

This case involves a breach of contract dispute. Now before the Court is a motion to enforce a settlement agreement filed by Plaintiff Poker Flat Property Owners Association, Inc ("Plaintiff") against Ronald Bruce Estrada, as Trustee of the Estrada Family Trust dated October 20, 1988 ("Defendant.")

Plaintiff filed the present action against Defendant on February 1, 2022, for the failure to adhere to the Declaration of Covenants, Conditions & Restrictions (CC&Rs) of the Poker Flat Property Owners Association. The Court held a settlement conference with the parties on August 5, 2024. The Court's minute order reflects that a settlement was reached pursuant to which Defendant would pay \$30,000.00 by February 5, 2024, and to maintain his property. (Aug. 5, 2024, Minute Order.) The Court accepted that agreement and further ordered that the failure to timely pay the agreed upon amount would result in a judgment against Defendant. Finally, the Court retained jurisdiction pursuant to Code Civ. Proc. section 664.6.

On January 9, 2025, the parties entered into a Settlement Agreement ("Agreement") (Declaration of Brian Shrigley ("Shrigley Decl.") ¶ 2, Ex. A.) Pursuant to the Agreement, Defendant agreed to pay \$30,000.00 to Plaintiff by February 5, 2025. (Ex. A.) Defendant was also obligated to pay \$2,848.29 in fees and costs. (*Ibid.*)

Plaintiff now moves to enforce the settlement agreement and for judgment against Defendant. It is unclear what efforts, if any, Plaintiff has undertaken to secure payment from Defendant, but from the records before the Court, it is undisputed that payment has not been made and the property has not been properly maintained.

Pursuant to Code Civ. Procedure section 664.6:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms

of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

Here, the Agreement provided that Defendant would pay \$32,848.29 to Plaintiff by February 5, 2025. (Ex. A.) The agreement explicitly was made pursuant to Code of Civil Procedure section 664.6 and is binding under that provision. (*Id.*) Plaintiff has not paid the mandatory settlement amount, nor has he maintained his property or provided proof of maintenance as set forth in the Agreement. Defendant does not oppose the present motion.

Accordingly, the motion is **GRANTED. Judgment is entered against Defendant in the amount of \$32,848.29.**

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted Proposed Order.

**POKER FLAT PROPERTY OWNERS ASSOCIATION, INC.
v. ROLON**

22CV46309

**PLAINTIFF'S MOTION TO ENFORCE
SETTLEMENT AGREEMENT**

This case involves a breach of contract dispute. Now before the Court is a motion to enforce a settlement agreement filed by Plaintiff Poker Flat Property Owners Association, Inc ("Plaintiff") against Mike Rolon ("Defendant.")

Now before the Court is a motion to enforce settlement and for judgment against Defendant.

I. Background

Plaintiff filed the present action against Defendant on September 15, 2022, for the failure to adhere to the Declaration of Covenants, Conditions & Restrictions (CC&Rs) of the Poker Flat Property Owners Association. At the trial readiness conference on September 17, 2024, the parties reported that the matter was settled for zero dollars and that the Court took notice of the oral settlement. Despite the Court's clear order to enter into a written agreement memorializing the oral one, Defendant and his counsel refused to sign the written agreement. (See, Nov. 8, 2024, Ruling on Mtn to Tax Costs.)

On November 8, 2024, the Court found that Plaintiff was the "prevailing party" and ordered Defendant to pay Plaintiff \$24,660.85 in attorney's fees and costs. (*Ibid.*)

On February 5, 2025, the parties finalized the written Settlement Agreement ("Agreement") (Declaration of Brian Shrigley ("Shrigley Decl.") ¶ 2, Ex. A.) Pursuant to the Agreement, Defendant agreed to various remediation measures on the property and specifically agreed to "conduct excavation only with prior written Association approval." (Ex. A., Section 1(e).) Pursuant to Section 4 of the Agreement, the fines of \$27,925.00 would be forgiven so long as Defendant complied with "all provisions of this Agreement."